

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT BETWEEN BHARAT ENTERPRISES INC. AND NEXUS DYNAMICS INC.

Between: **Bharat Enterprises Inc.** (Disclosing Party) and **Nexus Dynamics Inc.** (Receiving Party)

Effective Date: 2023-01-05

Termination Date: 2021-09-18

Governing Law: the laws of the State of Delaware

1. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

2. Termination

Either Party may terminate this Agreement by giving 30 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Nexus Dynamics Inc. shall pay for all Services rendered up to the date of termination.

3. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Pune. The award shall be final and binding.

4. Intellectual Property

All intellectual property rights in deliverables created specifically for Nexus Dynamics Inc. under this Agreement shall vest in Nexus Dynamics Inc. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Bharat Enterprises Inc. grants Nexus Dynamics Inc. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Nexus Dynamics Inc.'s internal business purposes.

5. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Bharat Enterprises Inc. shall process personal data of Nexus Dynamics Inc.'s employees or customers only as necessary to perform the Services and strictly in accordance with Nexus Dynamics Inc.'s written instructions. Bharat Enterprises Inc. shall implement appropriate technical and organisational measures to protect such data.

6. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this nda Agreement dated 2023-01-05 between Bharat Enterprises Inc. and Nexus Dynamics Inc.. "Services" means the services described in Clause 2. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

7. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

8. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

9. Scope of Services

Bharat Enterprises Inc. shall provide to Nexus the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

10. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

11. Insurance

Bharat Enterprises Inc. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 57,00,000 (Rupees Fifty-seven lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 57,00,000 (Rupees Fifty-seven lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Bharat Enterprises Inc. shall provide evidence of such insurance upon request.

12. Subcontracting

Bharat Enterprises Inc. shall not subcontract any material part of the Services without the prior written consent of Nexus Dynamics Inc.. Where subcontracting is permitted, Bharat Enterprises Inc. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 9 and Clause 4.

IN WITNESS WHEREOF

Disclosing Party

Bharat Enterprises Inc.

Signature: _____

Name: _____

Title: _____

Date: _____

Receiving Party

Nexus Dynamics Inc.

Signature: _____

Name: _____

Title: _____

Date: _____